FLIPPED SOCIAL, INC.
USER TERMS OF SERVICE

These User Terms of Service (the "Terms") constitute a legally binding agreement between you and Flipped Social, Inc., a Delaware corporation ("Flipped," "we," "our," or "us"), whose principal offices are located at 131 Continental Dr, Suite 305, Newark, DE 19713. These Terms govern your access to and use of the Flipped mobile application, website, and related services (collectively, the "Services"). These Terms apply to users located in the United States.

By creating an Account, tapping "I Agree," or otherwise accessing or using the Services, you acknowledge that you have read, understood, and agree to be bound by these Terms and our Privacy Policy, which is incorporated herein by reference.

PLEASE READ THESE TERMS CAREFULLY. SECTION 16 (DISPUTE RESOLUTION; BINDING ARBITRATION; CLASS ACTION WAIVER) CONTAINS A BINDING ARBITRATION PROVISION AND CLASS ACTION WAIVER THAT AFFECT YOUR LEGAL RIGHTS. UNLESS YOU OPT OUT IN ACCORDANCE WITH SECTION 16, YOU AGREE TO RESOLVE DISPUTES WITH FLIPPED THROUGH INDIVIDUAL BINDING ARBITRATION AND WAIVE YOUR RIGHT TO A JURY TRIAL AND YOUR RIGHT TO PARTICIPATE IN A CLASS ACTION.

NEW YORK RESIDENTS: PURSUANT TO NEW YORK GENERAL BUSINESS LAW § 394-C, YOU HAVE THE RIGHT TO CANCEL THIS AGREEMENT WITHOUT PENALTY OR OBLIGATION WITHIN THREE (3) BUSINESS DAYS AFTER THE DATE YOU SIGN OR AGREE TO IT. SEE SECTION 7.5 FOR INSTRUCTIONS.

IF YOU OR ANY OTHER PERSON IS IN IMMEDIATE DANGER, CALL 911 OR YOUR LOCAL EMERGENCY SERVICES IMMEDIATELY.

ARTICLE 1. DEFINITIONS

For purposes of these Terms, the following capitalized terms have the meanings set forth below:

"Account" means the personal user profile, preferences, activity history, and associated data you maintain within the Services.

"Agreement" means these Terms together with the Privacy Policy and any other policies expressly incorporated by reference.

"App" means the Flipped mobile software application, in any version or form, made available by Flipped.

"Cancellation" means the act of canceling a confirmed Date without rescheduling.

"Date" means an in-person meeting between two Users arranged through the Services and held at a Date Venue.

"Date Credit" means the refundable monetary deposit described in Section 8, which secures a User's commitment to attend a confirmed Date. Date Credits are sometimes referred to in the App as your "deposit" or "date token."

"Date Venue" means the third-party public venue (typically a restaurant or similar establishment) selected by Flipped at which a Date is scheduled to occur. The exact identity and address of the Date Venue are disclosed to Users no earlier than approximately twenty-four (24) hours prior to the scheduled Date, as further described in Section 7.3.

"Match" means a mutual indication of interest between two Users, generated by the Services, that may lead to a confirmed Date.

"Roses" means the virtual, non-monetary, non-refundable in-app tokens offered by Flipped and governed by Section 7.6.

"User," "you," or "your" means any individual who creates an Account, accesses, or uses the Services.

"Vendor" means any third-party operator of a Date Venue.

Flipped is not a matchmaking service, escort service, or background-check provider, and makes no representations, warranties, or guarantees regarding the identity, character, conduct, suitability, or compatibility of any User. Flipped does not guarantee romantic chemistry, compatibility, or any particular outcome from use of the Services.

ARTICLE 2. ELIGIBILITY, REGISTRATION, AND ACCOUNT USE

2.1 Eligibility

To access or use the Services, you represent and warrant that you: (a) are at least eighteen (18) years of age; (b) have provided your accurate date of birth during registration and have not manipulated the age-verification process; (c) have the legal capacity to enter into a binding contract under the laws of your jurisdiction; (d) are located in the United States; (e) have not previously been suspended, banned, or

otherwise removed from the Services; and (f) are not required to register as a sex offender in any jurisdiction.

2.2 Account Registration

You agree to provide accurate, current, and complete information when creating your Account, including your legal first name (pseudonyms are permitted where indicated), date of birth, phone number, gender, sexual orientation, race/ethnicity, and at least one clear and accurate profile photograph. You agree to promptly update your information as necessary to keep it accurate. You are solely responsible for safeguarding your login credentials and for all activities that occur under your Account. Notify Flipped immediately at support@flippedsocial.com if you become aware of any unauthorized access to your Account.

2.3 Phone Number Requirement and Uniqueness

A valid, unique U.S. phone number is required to create and maintain an Account. Each phone number may be associated with only one Account at any time. You agree not to use virtual phone numbers, VoIP numbers, or temporary phone numbers to circumvent this requirement. Flipped uses phone number uniqueness as a primary mechanism for preventing duplicate or banned-user re-registration; however, Flipped cannot guarantee that all circumvention attempts will be detected.

2.4 One Account Per User

You may maintain only one (1) active Account at any time. Creating multiple Accounts, including to circumvent a suspension or ban, constitutes a material breach of these Terms and may result in immediate permanent termination of all associated Accounts.

2.5 Identity Verification

Flipped uses a third-party face-scanning service to compare a selfie you submit against your profile photographs, to help verify that your profile accurately represents your appearance. By submitting a selfie, you consent to this automated comparison process. Flipped does not independently store raw biometric identifiers or templates. Flipped does not conduct criminal background checks and makes no representation or warranty regarding the truthfulness, accuracy, or completeness of any information provided by Users.

2.6 Assumption of Risk

YOU ACKNOWLEDGE AND AGREE THAT MEETING NEW PEOPLE, INCLUDING IN PUBLIC SETTINGS, INVOLVES INHERENT RISKS, INCLUDING THE RISK OF PHYSICAL HARM, EMOTIONAL DISTRESS, THEFT, OR ECONOMIC LOSS. YOU ARE SOLELY RESPONSIBLE FOR YOUR OWN SAFETY BEFORE, DURING, AND AFTER ANY DATE. YOU AGREE TO TAKE ALL REASONABLE PRECAUTIONS IN ALL COMMUNICATIONS AND INTERACTIONS WITH OTHER USERS, AND YOU ASSUME ALL RISK ASSOCIATED WITH SUCH INTERACTIONS, EXCEPT TO THE EXTENT SUCH RISK ARISES FROM FLIPPED'S OWN GROSS NEGLIGENCE OR WILLFUL MISCONDUCT.

ARTICLE 3. PROHIBITED CONDUCT

You agree that you will not, and will not attempt to:

- Harass, threaten, abuse, stalk, intimidate, defame, or otherwise harm any User, Vendor employee, or third party, whether on or off the platform;
- Engage in any unlawful conduct, including fraud, scams, solicitation of prostitution or commercial sexual services, human trafficking, or other criminal activity;
- Misrepresent your identity, age, appearance, marital status, occupation, or other material attributes in your profile or during a Date;
- Use the Services while impaired by alcohol or controlled substances in a manner that endangers yourself or others, or arrive at a Date Venue in an intoxicated state;
- Upload, post, transmit, or display any content that is unlawful, defamatory, obscene, sexually explicit, hateful, harassing, violent, or that infringes the rights of any third party;
- Solicit money, gifts, loans, financial information, or investments from other Users;
- Discriminate against, demean, or harass other Users on the basis of race, ethnicity, gender, sexual orientation, religion, disability, or any other protected characteristic;
- Record other Users (audio, video, or photography) during a Date without their explicit prior consent;
- Attempt to move a Date to a location other than the assigned Date Venue, or arrange private meetings outside the platform's scheduling system to circumvent Date Credits or other platform requirements;
- Exchange personal contact information (phone numbers, social media handles, email addresses) with other Users for the purpose of bypassing the platform's scheduling, deposit, or communication systems;
- Use the Services for any commercial purpose not expressly authorized by Flipped, including advertising, promotion, solicitation, or recruitment;
- Reverse engineer, decompile, disassemble, scrape, crawl, or otherwise attempt to derive source code, algorithms, or underlying data structures of the Services;
- Use any automated system, bot, script, or data-mining tool to access or interact with the Services;
- Interfere with, disrupt, or impose an unreasonable load on the Services or their underlying infrastructure;
- Circumvent any technical protection measure, rate limit, age gate, or access restriction;
- Leave a Date prematurely without reasonable justification where the other User has reported such conduct; or

- Use the Services in any manner that violates applicable federal, state, local, or international law.

Flipped enforces a zero-tolerance policy with respect to physical violence, sexual misconduct, harassment, hate speech, and fraud. Flipped may immediately and without prior notice suspend or permanently terminate the Account of any User suspected of such conduct. Where safety is at stake, Flipped may act on reported or suspected violations even where evidence is limited or not conclusively verified. Flipped prioritizes user safety over user retention in all enforcement decisions.

ARTICLE 4. SUSPENSION AND TERMINATION

4.1 Termination by Flipped

Flipped may warn, restrict, suspend, or permanently terminate your Account, with or without notice, in its sole discretion, where Flipped has a good-faith belief that: (a) you have violated these Terms or the User Guidelines; (b) you have engaged in conduct that may harm Flipped, other Users, Vendors, or third parties; (c) Flipped is required to do so by law or by order of a governmental authority; (d) continued provision of the Services to you is no longer commercially reasonable; or (e) your Account has been inactive for an extended period. Enforcement actions may be graduated based on severity and frequency, ranging from warnings and temporary restrictions to permanent termination, as further described in the User Guidelines.

4.2 Termination by You

You may terminate your Account at any time by using the account deletion feature within the App or by contacting support@flippedsocial.com. Termination does not entitle you to a refund of any fees previously paid, except as expressly set forth in Section 7.5 or Section 8, or as required by applicable law.

4.3 Effect of Termination

Upon termination of your Account for any reason: (a) your right to access and use the Services immediately ceases; (b) any confirmed Dates associated with your Account will be automatically canceled; (c) Flipped will refund any unforfeited Date Credits to your original payment method within thirty (30) days, except where such Credits have been forfeited under Section 8 or the Date Adjustment Policy; (d) unused Roses are forfeited upon termination; (e) Flipped may retain certain information as necessary to comply with legal obligations, prevent fraud, enforce these Terms, and prevent re-registration by banned Users; and (f) Sections 3, 5, 6, 8 (forfeiture provisions), 9, 10, 11, 12, 13, 14, 15, 16, and 17 shall survive termination of your Account.

4.4 Credits Upon Ban

If your Account is terminated by Flipped for a violation of these Terms, any remaining Date Credit balance is subject to forfeiture. However, if you believe your termination was

erroneous, you may request a review of your Date Credit balance at support@flippedsocial.com within fourteen (14) days of termination. Flipped will review such requests in good faith; all decisions are made at Flipped's sole discretion. Roses are non-refundable and are forfeited upon termination under all circumstances.

ARTICLE 5. USER CONTENT

5.1 Responsibility for Content

You are solely responsible for all photographs, text, prompts, messages, and other materials you submit, post, or display through the Services (collectively, "User Content"). You represent and warrant that: (a) you own or have obtained all necessary rights, licenses, and consents to submit such User Content; (b) the User Content does not violate any third-party intellectual property, privacy, or other rights; (c) the User Content does not violate applicable law; and (d) all photographs you submit accurately represent your current appearance.

5.2 License Grant to Flipped

By submitting User Content, you hereby grant Flipped a worldwide, non-exclusive, royalty-free, sublicensable, and transferable license to host, store, reproduce, modify, adapt, publish, translate, publicly display, and distribute your User Content, solely for the purposes of operating, providing, improving, and promoting the Services, including use in marketing materials, advertising, social media promotion, and product development. This license terminates upon deletion of the relevant User Content or termination of your Account, except that: (a) Flipped may retain and continue to use User Content that has already been incorporated into marketing or promotional materials prior to deletion or termination; and (b) Flipped may retain backup or archival copies as required by law or for legitimate business purposes.

5.3 Content Moderation and AI Processing

Flipped uses automated content moderation tools, including AI services provided by Anthropic, PBC (Claude) and OpenAI, Inc., to scan User Content for sexually explicit, violent, hateful, or otherwise policy-violating material. Flagged content may be reviewed by Flipped's team and may result in content removal or account action. Profile content may also be processed by Flipped's internal classification systems to verify that profiles meet platform standards.

Flipped reserves the right, but assumes no obligation, to review, monitor, remove, refuse, or delay activation of any User Content or Account at any time, with or without notice, for any reason, including suspected violation of these Terms or the User Guidelines.

5.4 Profile Pre-Approval

Profiles may be reviewed by Flipped before activation. Flipped reserves the right to request profile edits, delay account activation, or reject accounts that do not meet platform standards, as determined in Flipped's sole discretion.

5.5 False Reporting

Reports submitted through the Services must be truthful and submitted in good faith. Submitting false, misleading, or malicious reports constitutes a violation of these Terms and may itself result in enforcement action against the reporting User.

5.6 Feedback

If you submit suggestions, ideas, or feedback regarding the Services ("Feedback"), you grant Flipped a perpetual, irrevocable, worldwide, royalty-free license to use such Feedback for any purpose without compensation or attribution to you.

ARTICLE 6. SMS COMMUNICATIONS; TCPA CONSENT

6.1 Consent to Receive SMS

By providing your phone number and creating an Account, you expressly consent to receive recurring automated and non-automated text messages (SMS) from Flipped at the phone number you provide. These messages may include:

- Match notifications and Date confirmations
- Date reminders and logistical updates (e.g., venue information)
- Safety alerts and account notifications
- Marketing and promotional messages, where separately opted in

This consent is not a condition of purchasing any goods or services. Message frequency varies. Standard message and data rates may apply depending on your carrier plan.

6.2 Opt-Out and Opt-Back-In

To opt out of all SMS communications from Flipped, reply STOP to any message or update your notification preferences within the App. You acknowledge that opting out of SMS will also discontinue time-sensitive transactional messages delivered via SMS, including Date confirmations and reminders, which may affect your ability to use the Services effectively. You may opt back in at any time by replying START to a prior Flipped message or by updating your in-app notification preferences.

6.3 Email Notifications

Flipped may also communicate with you by email regarding your Account, Dates, and, where consented, marketing promotions. You may opt out of marketing emails at any time by clicking the unsubscribe link in any marketing email. Opting out of marketing emails does not affect transactional communications related to your Account or Dates.

ARTICLE 7. PAYMENTS, FEES, AND CANCELLATION RIGHTS

7.1 Payment Processing

Flipped may charge fees for certain features, including Date Credits (Section 8), optional premium subscription tiers, and Roses (Section 7.6). All payments are processed by third-party payment processors, including Stripe, Inc. and Apple Inc. (Apple Pay). By initiating a payment, you authorize Flipped and its payment processors to charge the applicable amounts to your designated payment method. You agree to comply with the terms and conditions of the applicable payment processor. Flipped does not store your raw payment credentials.

7.2 Pricing and Taxes

All fees are stated in U.S. dollars and are exclusive of any applicable taxes, which are your sole responsibility. Flipped reserves the right to modify pricing at any time upon notice; modifications will not affect fees for transactions already completed.

7.3 Date Venue Disclosure Model

You acknowledge and agree that, as a core and material feature of the Services, Flipped will not disclose the exact name or street address of a Date Venue until approximately twenty-four (24) hours prior to the scheduled Date. This delayed-disclosure model is integral to the Flipped experience. At the time you confirm a Date and authorize the corresponding Date Credit, Flipped will disclose: (a) the general neighborhood of the Date Venue (e.g., "Lower East Side, Manhattan"); (b) an approximate price range for food and beverages; and (c) the scheduled date and time. You acknowledge that dissatisfaction with the specific Date Venue selected does not constitute a valid basis for a refund of your Date Credit, except as otherwise required by applicable law. Flipped reserves the right to change the assigned Date Venue after confirmation at its sole discretion; Users will be notified of any such change as promptly as reasonably practicable.

7.4 Processing Fee

A processing fee of $0.99 (plus any applicable taxes) may be assessed per Date Credit transaction to cover payment processing costs. This fee is non-refundable regardless of the outcome of the associated Date.

7.5 New York Three-Day Cancellation Right

If you are a resident of the State of New York, you have the right to cancel this Agreement, without any penalty or further obligation, by delivering written notice of cancellation to Flipped at support@flippedsocial.com no later than midnight of the third (3rd) business day following the date on which you first agreed to these Terms. Upon timely cancellation, Flipped will refund all amounts paid by you within thirty (30) days. This right does not affect your other rights under applicable law. Residents of other states may have similar statutory cancellation rights; nothing in these Terms is intended

to waive or limit any non-waivable consumer protection right available to you under the laws of your state.

7.6 Roses (Virtual Tokens)

Roses are a limited, non-exclusive, revocable, non-transferable license to access a feature of the Services. Roses have no monetary value, do not constitute property or a stored-value instrument, and may not be redeemed for cash, exchanged, gifted, or transferred under any circumstances, except as expressly required by applicable law. Flipped may modify, suspend, or discontinue Roses at any time. All unused Roses are forfeited upon termination of your Account for any reason.

7.7 Premium Subscriptions

If you purchase an auto-renewing subscription, you authorize Flipped (or the applicable app store) to charge your payment method on a recurring basis until you cancel. You may cancel auto-renewal at any time through your Apple App Store account settings. Cancellation will take effect at the end of the then-current billing period; no refund will be issued for the current period except as required by applicable law.

ARTICLE 8. DATE CREDITS (DEPOSITS)

8.1 Purpose

Date Credits are refundable monetary deposits collected by Flipped to encourage attendance, deter no-shows, and maintain the quality and reliability of the Services. Date Credits are not service fees, gratuities, or payments to Flipped for goods or services rendered. Date Credits appear in your in-app wallet and may be applied toward future Dates or refunded to your original payment method, subject to the conditions below.

8.2 Amount

The Date Credit deposit is twenty-five U.S. dollars ($25.00) per User per Date, plus the $0.99 processing fee described in Section 7.4. Flipped reserves the right to modify the deposit amount upon prospective notice to Users; any modification will not affect Deposits already collected for confirmed Dates.

8.3 Wallet and Redemption

Collected Date Credits appear in your in-app wallet. After a qualifying Date, you may choose to: (a) apply the Credit toward your next Date; or (b) request a refund to your original payment method by tapping "Refund to Original Payment Method" in your profile. Refunds to original payment method will be processed within ten (10) business days.

8.4 Refund Conditions

Subject to Section 8.5, your Date Credit will be refunded in full if you arrive at the Date Venue no later than fifteen (15) minutes after the scheduled start time and otherwise comply with these Terms and the User Guidelines throughout the Date.

8.5 Forfeiture

Your Date Credit will be forfeited in full and retained by Flipped as liquidated damages in any of the following circumstances:

- You fail to appear at the Date Venue at any time during the scheduled Date (a "no-show");
- You arrive more than fifteen (15) minutes after the scheduled start time;
- You cancel a confirmed Date less than twenty-four (24) hours before the scheduled start time, except in cases of documented emergency as determined by Flipped in its reasonable discretion;
- You engage in conduct at the Date Venue that violates Article 3 or that results in your removal from the Date Venue by Vendor staff or law enforcement;
- You materially misrepresent your identity, appearance, or profile in connection with the Date, as reported by the other User and determined by Flipped; or
- You leave a Date prematurely without reasonable justification and the other User reports such conduct, as determined by Flipped in its reasonable discretion.

Where one User's Date Credit is forfeited, Flipped will use reasonable efforts to compensate the non-offending User, which may include a full or partial credit to their wallet. The actual damages caused by no-shows, late arrivals, and last-minute cancellations are difficult to ascertain; the forfeited Credit represents a reasonable estimate of such damages and is not a penalty.

8.6 Disputes

If you believe your Date Credit has been improperly forfeited, you may submit a written dispute to support@flippedsocial.com within fourteen (14) days of the scheduled Date. Flipped will investigate in good faith and respond within a reasonable time. Flipped's resolution is final within the platform and is subject to the dispute resolution provisions of Section 16.

ARTICLE 9. DATE SCHEDULING AND ADJUSTMENTS

9.1 Scheduling Process

Dates are arranged through the following process:

- One User sends an invite to a Match, submits a Date Credit, and proposes their availability. Submission of the Date Credit constitutes confirmation of the inviting User's intent and availability.

- The invited User must accept the invite and submit their own Date Credit within forty-eight (48) hours of receipt (or such other period as Flipped may specify). Failure to do so within this window may result in cancellation of the Match without penalty to either User.
- Once both Users have submitted Date Credits and availability, Flipped coordinates and assigns a Date time and Date Venue at its sole discretion.
- If User availability does not align, Flipped may request additional availability from either User. Failure to respond within forty-eight (48) hours may result in cancellation of the Match.
- Flipped may ask Users to confirm attendance prior to the scheduled Date. Failure to confirm within the required window may result in cancellation and Date Credit forfeiture.
- A limited system communication channel (e.g., for messages such as "running late" or "I'm wearing white") may be made available shortly before the Date for logistical purposes only. This channel is not a general messaging feature.

9.2 Rescheduling

The following rules apply to rescheduling requests for confirmed Dates:

- More than 24 hours before: Either User may request to reschedule without penalty. Date Credits are retained.
- Within 24 hours: Rescheduling requires the other User's acceptance. If the other User declines, the rescheduling request is treated as a Cancellation by the requesting User, and the requesting User's Date Credit may be forfeited under Section 8.5.
- Repeated rescheduling: Multiple rescheduling requests for the same Date may be treated as a Cancellation at Flipped's discretion.
- Non-response: If a User fails to respond to a valid rescheduling request within forty-eight (48) hours, the Date may be canceled on that User's behalf, and their Date Credit may be forfeited.

9.3 Cancellation

The following cancellation rules apply:

- Pre-confirmation: Before a Date is confirmed by Flipped, either User may cancel without penalty and both Date Credits will be returned in full.
- Post-confirmation: Cancellations after Date confirmation are subject to the forfeiture provisions of Section 8.5.
- Account changes: If a User's Account is suspended, banned, or deleted, any scheduled Dates are automatically canceled. The non-offending User's Date Credit will be returned.

9.4 Graduated Enforcement for Attendance Violations

Users who exhibit patterns of non-attendance, late cancellation, or repeated rescheduling may be subject to graduated enforcement measures, including:

- Temporary account restrictions or limited scheduling access
- Requirement to pre-fund a new Date Credit before scheduling additional Dates
- Temporary suspension
- Permanent ban for repeated or severe offenses

All enforcement decisions are made at Flipped's sole discretion. Users may appeal enforcement decisions by contacting support@flippedsocial.com; Flipped will review appeals in good faith, though all final decisions remain with Flipped.

9.5 Circumvention Prohibited

Exchanging personal contact information with other Users for the purpose of arranging meetings outside the Services, bypassing the Date Credit system, or otherwise circumventing the platform's scheduling infrastructure constitutes a material breach of these Terms. Flipped may forfeit Date Credits, suspend, or permanently ban Users found to have engaged in such conduct.

ARTICLE 10. VENUE RELATIONSHIPS AND FUTURE PARTNERSHIPS

10.1 Current Venue Relationships

Flipped currently assigns Date Venues to confirmed Dates from a curated list of public establishments (restaurants and similar venues). Flipped does not currently have formal revenue-sharing or referral agreements with venue operators. Flipped does not share User personal information with Venue operators.

10.2 Future Commercial Arrangements

Flipped intends to develop formal commercial relationships with Vendors, which may include referral fees, venue reservation systems, or sponsored Date Venues. If and when such arrangements are established, Flipped will disclose any material impact on Users. Flipped reserves the right to include sponsored or partner venues in its Date Venue rotation without prior individual notice to Users, provided that sponsored Dates are treated in all material respects the same as non-sponsored Dates.

10.3 Future Group Dates and Hosted Experiences

Flipped may in the future introduce group date features, user-hosted experiences (similar to third-party hosted events), and multi-match social events. Any such features will be governed by supplemental terms published at the time of their launch. By using those features when available, you will be deemed to have agreed to the applicable supplemental terms. Nothing in these Terms grants you any current right to access group date or hosted experience features not yet launched.

ARTICLE 11. INTELLECTUAL PROPERTY

11.1 Flipped's Property

The Services, including all software, app design, user interface, graphics, logos, trademarks, trade dress, matching algorithms, proprietary scoring systems, and all other content (excluding User Content), are the exclusive property of Flipped or its licensors and are protected by United States and international intellectual property laws. No rights in the Services are granted to you except the limited license set forth in Section 11.2.

11.2 License to Use the Services

Subject to your ongoing compliance with these Terms, Flipped grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to download, install, and use the App on a compatible iOS device that you own or control, solely for your personal, non-commercial use. This license does not include the right to: (a) sublicense, sell, resell, or transfer the App; (b) modify, translate, or create derivative works based on the App; (c) reverse engineer or attempt to extract source code from the App; or (d) use the App for any commercial purpose.

11.3 Trademarks

"Flipped," the Flipped logo, and other Flipped marks and trade dress are trademarks or registered trademarks of Flipped Social, Inc. You may not use any Flipped mark in any manner without the prior written consent of Flipped.

11.4 DMCA Notice and Takedown

Flipped respects the intellectual property rights of others and complies with the Digital Millennium Copyright Act, 17 U.S.C. § 512 (the "DMCA"). If you believe material on the Services infringes your copyright, submit a written notification to Flipped's Designated Copyright Agent containing the following information as required by 17 U.S.C. § 512(c)(3): (a) your physical or electronic signature; (b) identification of the copyrighted work; (c) identification of the allegedly infringing material and information sufficient to locate it; (d) your contact information; (e) a statement of good-faith belief that the use is not authorized; and (f) a statement under penalty of perjury that the information is accurate and that you are authorized to act on behalf of the copyright owner.

Designated Copyright Agent:

Flipped Social, Inc.
Attn: Copyright Agent
131 Continental Dr, Suite 305
Newark, DE 19713
Email: dmca@flippedsocial.com

Flipped will respond to valid DMCA notices in accordance with applicable law, including disabling access to allegedly infringing material and, where appropriate, terminating the accounts of repeat infringers.

ARTICLE 12. PRIVACY AND DATA

Flipped's collection, use, and disclosure of personal information is governed by the Flipped Privacy Policy, available at flippedsocial.com/privacy and incorporated into these Terms by reference. By using the Services, you acknowledge that you have read and understood the Privacy Policy.

In providing the Services, Flipped uses the following categories of third-party service providers: (a) Stripe, Inc. and Apple Inc. for payment processing; (b) Supabase, Inc. for backend data storage; (c) Cloudflare, Inc. for content delivery and security; (d) Anthropic, PBC and OpenAI, Inc. for AI-powered content moderation and classification of User-submitted profile content; (e) PostHog, Inc. for product analytics; and (f) Nightwatch for backend observability. By using the Services, you consent to the transfer of your information to such providers as necessary to operate the Services.

ARTICLE 13. ADVERTISING AND COMMERCIAL FEATURES

Flipped may display third-party or Flipped-branded advertisements within the Services, now or in the future. Advertisements may be contextual (based on in-app content or general location) or based on general demographic attributes derived from your profile. Flipped does not use cross-app behavioral tracking or sell your personal information to advertising networks.

Flipped may enter into commercial arrangements with brands, Vendors, and other partners, including sponsored Date Venues, co-branded experiences, and promotional offers made available within the Services. Participation in sponsored or promotional features is always voluntary. Material commercial relationships that affect your Date experience will be disclosed to you within the App.

ARTICLE 14. MINOR SAFETY

The Services are intended exclusively for adults eighteen (18) years of age or older. Users are required to provide their date of birth during registration, and access is denied to individuals who do not meet the minimum age requirement. Flipped does not knowingly collect personal information from anyone under eighteen. If Flipped becomes aware that a User is under eighteen, Flipped will immediately terminate the Account and delete associated personal information in accordance with applicable law.

Flipped cooperates with the National Center for Missing & Exploited Children (NCMEC), law enforcement, and other appropriate authorities in connection with the protection of minors. If you believe a minor is using the Services, report it immediately to safety@flippedsocial.com.

ARTICLE 15. DISCLAIMERS; LIMITATION OF LIABILITY; INDEMNIFICATION

15.1 Disclaimer of Warranties

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, THE SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITH ALL FAULTS AND WITHOUT WARRANTY OF ANY KIND. FLIPPED EXPRESSLY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. FLIPPED MAKES NO WARRANTY THAT: (A) THE SERVICES WILL MEET YOUR REQUIREMENTS OR EXPECTATIONS; (B) THE SERVICES WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE; (C) ANY USER WILL BE COMPATIBLE, SAFE, HONEST, OR SUITABLE; (D) ANY DATE WILL RESULT IN ROMANTIC COMPATIBILITY, CHEMISTRY, OR ANY OTHER OUTCOME; OR (E) ANY CONTENT OR INFORMATION PROVIDED THROUGH THE SERVICES WILL BE ACCURATE OR COMPLETE.

15.2 Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT WILL FLIPPED, ITS AFFILIATES, OR ITS OR THEIR RESPECTIVE OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, OR LICENSORS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, DATA, GOODWILL, OR BUSINESS OPPORTUNITIES, ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICES, WHETHER BASED ON CONTRACT, TORT, STRICT LIABILITY, OR ANY OTHER LEGAL THEORY, EVEN IF FLIPPED HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, FLIPPED'S TOTAL CUMULATIVE LIABILITY TO YOU ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICES SHALL NOT EXCEED THE GREATER OF: (A) THE TOTAL AMOUNTS ACTUALLY PAID BY YOU TO FLIPPED IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM; OR (B) ONE HUNDRED U.S. DOLLARS ($100.00).

The foregoing limitations do not apply to: (a) Flipped's own gross negligence or willful misconduct; (b) death or personal injury caused by Flipped's negligence; (c) liabilities that cannot be limited or excluded under applicable law; or (d) fraud or fraudulent misrepresentation by Flipped. Some jurisdictions do not allow the exclusion or limitation of certain damages, so some or all of the above limitations may not apply to you.

15.3 Third-Party Conduct and Venues

Flipped is not responsible for the conduct of any User, Vendor, or other third party, whether online or offline. Flipped does not own, operate, manage, or control any Date Venue and is not responsible for the food, beverages, service, safety conditions, accessibility, pricing, or any other aspect of any Date Venue or the experience therein. Any dispute between you and a Vendor must be resolved directly with the Vendor.

Flipped's involvement is limited to the coordination of the Date; what happens during and after the Date is outside of Flipped's control and responsibility, subject only to Flipped's own gross negligence or willful misconduct.

15.4 Indemnification

You agree to indemnify, defend (at Flipped's option), and hold harmless Flipped, its affiliates, and their respective officers, directors, employees, agents, and licensors from and against any and all claims, liabilities, damages, losses, penalties, and expenses (including reasonable attorneys' fees and costs) arising out of or relating to: (a) your use of the Services; (b) your User Content; (c) your violation of these Terms or any applicable law or regulation; (d) your interactions with other Users, Vendors, or third parties; (e) any misrepresentation you make; or (f) any claim that your User Content infringes the rights of any third party. Flipped reserves the right, at its own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you, in which event you agree to cooperate with Flipped's defense of such matter.

ARTICLE 16. DISPUTE RESOLUTION; BINDING ARBITRATION; CLASS ACTION WAIVER

PLEASE READ THIS SECTION CAREFULLY. IT SIGNIFICANTLY AFFECTS YOUR LEGAL RIGHTS, INCLUDING YOUR RIGHT TO FILE A LAWSUIT IN COURT AND TO HAVE A JURY HEAR YOUR CLAIMS.

16.1 Informal Resolution

Before initiating any formal dispute resolution proceeding, you agree to first contact Flipped at legal@flippedsocial.com and provide a written description of the dispute, your name and contact information, and the relief sought. Both parties agree to attempt in good faith to resolve the dispute informally for a period of at least sixty (60) days from the date Flipped receives your written notice before initiating arbitration or other formal proceedings.

16.2 Agreement to Arbitrate

If informal resolution fails, you and Flipped agree that any dispute, claim, or controversy arising out of or relating to these Terms or the breach, termination, enforcement, interpretation, or validity thereof, or to the use of the Services (collectively, a "Dispute"), shall be resolved exclusively through final and binding individual arbitration administered by the American Arbitration Association ("AAA"), except as expressly provided in Section 16.5. This arbitration agreement is governed by the Federal Arbitration Act ("FAA"), 9 U.S.C. § 1 et seq., and shall survive termination of these Terms.

16.3 Arbitration Rules and Procedure

The arbitration shall be administered by the AAA in accordance with the AAA Consumer Arbitration Rules then in effect, as modified by these Terms. The arbitration shall be conducted by a single, neutral arbitrator. The arbitration shall be seated in New York, New York; however, you may elect to participate by telephone, video conference, or document submission, or in person at a location reasonably convenient to you as agreed with the arbitrator. The arbitrator's award will be in writing and will include the essential findings and conclusions on which the award is based. Judgment on the award may be entered in any court of competent jurisdiction.

16.4 Class Action Waiver

YOU AND FLIPPED AGREE THAT EACH PARTY MAY BRING CLAIMS AGAINST THE OTHER ONLY IN AN INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, CONSOLIDATED, MASS, OR REPRESENTATIVE ACTION OR PROCEEDING. THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PERSON'S CLAIMS AND MAY NOT PRESIDE OVER ANY FORM OF REPRESENTATIVE, CLASS, OR COLLECTIVE PROCEEDING. IF THIS CLASS ACTION WAIVER IS FOUND TO BE UNENFORCEABLE AS TO ANY PARTICULAR CLAIM OR REQUEST FOR RELIEF, THEN THAT CLAIM OR REQUEST FOR RELIEF SHALL BE SEVERED FROM THE ARBITRATION AND RESOLVED IN A COURT OF COMPETENT JURISDICTION, WHILE THE REMAINING CLAIMS SHALL PROCEED IN ARBITRATION ON AN INDIVIDUAL BASIS.

16.5 Exceptions to Arbitration

Notwithstanding Section 16.2, the following Disputes are not subject to binding arbitration:

- Any individual claim properly brought in a small-claims court of competent jurisdiction, so long as the action remains in that court and proceeds only on an individual basis;
- Any claim relating to the ownership, validity, or infringement of Flipped's intellectual property rights; and
- As required by the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021, 9 U.S.C. § 401 et seq. (the "EFAA"), any Dispute alleging conduct constituting sexual assault or sexual harassment, which, at the election of the claimant, may be brought in a court of competent jurisdiction, notwithstanding any other provision of this Section 16.

16.6 Arbitration Costs and Fees

Payment of all AAA filing, administration, and arbitrator fees shall be governed by the AAA Consumer Arbitration Rules. Flipped will pay any filing fees that the AAA determines to be Flipped's responsibility under the Consumer Arbitration Rules. To the extent required to render this arbitration agreement enforceable, Flipped will pay any portion of the arbitrator's fees that would otherwise be your responsibility.

16.7 Severability of Arbitration Provisions

If any portion of this Section 16, other than the Class Action Waiver in Section 16.4, is found to be unenforceable, that portion shall be severed and the remainder of this Section 16 shall continue in full force and effect. If the Class Action Waiver in Section 16.4 is found to be unenforceable in its entirety, this entire Section 16 shall be null and void, and disputes shall be resolved in a court of competent jurisdiction.

ARTICLE 17. FORCE MAJEURE

Flipped shall not be liable for any failure or delay in performance under these Terms resulting from causes beyond its reasonable control, including but not limited to: acts of God; natural disasters; war; terrorism; civil unrest; government action, orders, or regulation; pandemic or epidemic; public health emergency; labor disputes or strikes; telecommunications or internet failures; power outages; or failures of third-party service providers or infrastructure. Flipped will use reasonable efforts to resume affected Services as promptly as practicable.

ARTICLE 18. MODIFICATIONS TO THE SERVICES AND TERMS

Flipped reserves the right to modify, suspend, or discontinue all or any portion of the Services at any time, with or without notice, and shall not be liable to you for any such modification, suspension, or discontinuation. Flipped may also modify these Terms from time to time. If Flipped makes a material change to these Terms, Flipped will provide reasonable advance notice through the App or by email to the address associated with your Account. Your continued use of the Services after the effective date of any modification constitutes your acceptance of the modified Terms. If you do not agree to the modified Terms, your sole remedy is to terminate your Account prior to the effective date.

ARTICLE 19. GENERAL PROVISIONS

19.1 Governing Law

These Terms and any Dispute arising out of or relating to them or the Services shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict-of-laws principles, except that the FAA governs the interpretation and enforcement of Section 16.

19.2 Entire Agreement

These Terms, together with the Privacy Policy, User Guidelines, Date Adjustment Policy, and any other documents expressly incorporated by reference, constitute the entire agreement between you and Flipped regarding the Services and supersede all prior or contemporaneous communications, agreements, representations, and understandings, whether oral or written, regarding the same subject matter.

19.3 Severability

If any provision of these Terms is held by a court or arbitrator of competent jurisdiction to be invalid, illegal, or unenforceable, that provision shall be enforced to the maximum extent permitted by law, and the remaining provisions shall continue in full force and effect.

19.4 No Waiver

No failure or delay by Flipped in exercising any right, power, or remedy under these Terms shall constitute a waiver of that right, power, or remedy. No single or partial exercise of any right shall preclude any other or further exercise thereof.

19.5 Assignment

You may not assign or transfer these Terms, or any of your rights or obligations hereunder, whether by operation of law or otherwise, without Flipped's prior written consent. Any purported assignment without consent is null and void. Flipped may assign these Terms and any of its rights or obligations hereunder at any time without notice or consent, including in connection with a merger, acquisition, or sale of assets.

19.6 Notices

Flipped may provide notices to you by email, push notification, in-app message, or by posting on its website. You may provide notices to Flipped at: legal@flippedsocial.com, or by mail to Flipped Social, Inc., Attn: Legal, 131 Continental Dr, Suite 305, Newark, DE 19713. Notices are deemed received when sent by email (absent a delivery failure notification) or three (3) days after mailing.

19.7 No Third-Party Beneficiaries

These Terms are entered into solely for the benefit of you and Flipped and do not confer any rights or remedies on any third party, including Vendors.

19.8 Relationship of the Parties

Nothing in these Terms creates a partnership, joint venture, agency, franchise, employment, or fiduciary relationship between you and Flipped. You have no authority to make representations or incur obligations on behalf of Flipped.

19.9 Headings

Section and article headings are included for convenience only and shall not affect the interpretation or construction of these Terms.

19.10 Contact

For legal questions regarding these Terms: legal@flippedsocial.com | Flipped Social, Inc., 131 Continental Dr, Suite 305, Newark, DE 19713. For support: support@flippedsocial.com. For safety concerns: safety@flippedsocial.com. For copyright/DMCA: dmca@flippedsocial.com. For privacy: privacy@flippedsocial.com.

BY TAPPING "I AGREE," CREATING AN ACCOUNT, OR OTHERWISE ACCESSING OR USING THE SERVICES, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THESE TERMS OF SERVICE IN THEIR ENTIRETY, INCLUDING THE BINDING ARBITRATION PROVISION AND CLASS ACTION WAIVER IN SECTION 16.

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